

Comprehensive Arizona Rules of Professional Conduct

This document consolidates the summaries and functional descriptions of the Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42). It integrates the content from the individual documents previously created for each rule, providing a single reference for the ethical obligations governing attorneys practicing in Arizona, including in the District of Arizona.

Preamble & Scope

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: The Preamble outlines the lawyer's multiple roles: representative of clients, officer of the legal system, and public citizen with special responsibility for justice. It sets the aspirational tone for the Rules. The Scope section clarifies the status of the Rules (rules of reason, basis for discipline), explains that violation does not automatically create a basis for civil liability, and describes the relationship of the Rules to other law.

Functional Purpose: To provide the foundational context, purpose, and interpretive framework for all the individual Rules of Professional Conduct. It explains *why* these rules exist and *how* they should be understood and applied.

Rule 1.0 Terminology

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule provides definitions for key terms used throughout the Rules of Professional Conduct. Terms like "Belief" or "Believes," "Confirmed in Writing," "Informed Consent," "Knowingly," "Reasonable" or "Reasonably," and "Tribunal" are defined specifically for the purposes of the Rules.

Functional Purpose: To ensure clarity and consistent interpretation of the subsequent rules by providing precise meanings for the defined terms. It prevents ambiguity and ensures that lawyers understand exactly what is required or prohibited by the Rules.

Rule 1.1 Competence

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule requires a lawyer to provide competent representation to a client.

Competence is defined as possessing the legal knowledge, skill, thoroughness, and preparation reasonably necessary for the representation.

Functional Purpose: To protect clients and the integrity of the legal system by ensuring that lawyers have the basic ability and preparation needed to handle legal matters. It functions as a minimum standard of quality in legal services.

Rule 1.2 Scope of Representation and Allocation of Authority between Client and Lawyer

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule defines the boundaries of the lawyer-client relationship. It states that the client sets the objectives of the representation, while the lawyer consults with the client about the means by which they are pursued. It clarifies limitations on the lawyer's conduct (cannot assist crime/fraud) and allows for limiting the scope of representation if reasonable and the client gives informed consent.

Functional Purpose: To clarify the division of decision-making authority between lawyer and client, empowering the client regarding the goals of the representation while defining the lawyer's professional autonomy and ethical limits.

Rule 1.3 Diligence

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule requires a lawyer to act with reasonable diligence and promptness in representing a client.

Functional Purpose: To ensure that clients' legal matters are pursued with appropriate effort and within necessary timeframes, preventing harm to the client's interests due to lawyer inaction or delay. It functions to maintain the momentum and effectiveness of legal representation.

Rule 1.4 Communication

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule mandates that lawyers keep their clients reasonably informed about the status of their matters, promptly comply with reasonable requests for information, and explain matters to the extent reasonably necessary to permit the

client to make informed decisions.

Functional Purpose: To ensure the client is an active and informed participant in their representation, fostering trust and enabling the client to make critical decisions based on a proper understanding of their case. It is essential for maintaining a healthy client-lawyer relationship.

Rule 1.5 Fees

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule governs the fees a lawyer may charge. It requires fees to be reasonable, lists factors for determining reasonableness, dictates that the scope of representation and the basis or rate of the fee usually must be communicated to the client (preferably in writing), and provides guidelines for contingent fees and division of fees between lawyers.

Functional Purpose: To protect clients from excessive fees and misunderstandings about the cost of legal services, ensuring fairness and transparency in financial arrangements.

Rule 1.6 Confidentiality of Information

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule establishes the lawyer's duty to maintain the confidentiality of information relating to the representation of a client. It outlines circumstances where disclosure is permitted (e.g., informed consent, implied authorization, preventing certain future crimes or fraud) or required (e.g., preventing client criminal act likely to result in death or substantial bodily harm, or rectifying certain past client crimes/fraud).

Functional Purpose: To encourage full and frank communication between clients and lawyers, thereby promoting effective representation and protecting the client's privacy and interests. It is a cornerstone of the client-lawyer relationship.

Rule 1.7 Conflict of Interest: Current Clients

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits representing a client if the representation involves a concurrent conflict of interest. A conflict exists if the representation is directly adverse

to another current client, or if there is a significant risk that the representation will be materially limited by the lawyer's responsibilities to another client, a former client, a third person, or by a personal interest of the lawyer. It provides exceptions if the lawyer reasonably believes they can provide competent and diligent representation, the representation is not prohibited by law, the claim is not against a client represented in the same litigation, and the client gives informed consent, confirmed in writing.

Functional Purpose: To ensure the lawyer's loyalty and independent professional judgment are not compromised by conflicting interests, thereby protecting the integrity of the client-lawyer relationship and the quality of representation.

Rule 1.8 Conflict of Interest: Current Clients: Specific Rules

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule addresses specific types of conflicts between a lawyer and a current client, such as business transactions with a client, using information to a client's disadvantage, soliciting substantial gifts, acquiring literary or media rights, providing financial assistance, accepting compensation from a third party, aggregate settlements, limiting malpractice liability, acquiring a proprietary interest in litigation, and sexual relations with a client. Most require informed consent under specific conditions, and some are generally prohibited.

Functional Purpose: To prevent lawyers from exploiting the client-lawyer relationship for their personal gain or the gain of a third party, reinforcing the lawyer's duty of loyalty and preventing situations that could compromise independent judgment.

Rule 1.9 Duties to Former Clients

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule imposes duties on lawyers regarding former clients. It prohibits representing a new client in the same or a substantially related matter in which the new client's interests are materially adverse to those of the former client, unless the former client gives informed consent, confirmed in writing. It also prohibits using information relating to the former representation to the disadvantage of the former client or revealing information relating to the former representation, unless the Rules would permit or require with respect to a current client.

Functional Purpose: To protect the confidences of former clients and maintain

loyalty after the representation has ended, preventing the lawyer from using information gained in confidence against the former client.

Rule 1.10 Imputation of Conflicts of Interest: General Rule

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule deals with how conflicts of interest are imputed from one lawyer to others in a law firm. Generally, if one lawyer in a firm is prohibited from representing a client, all lawyers in that firm are also prohibited. It provides mechanisms for screening affected lawyers to prevent imputation in certain situations, particularly when the conflict arises from the lawyer's association with a prior firm.

Functional Purpose: To prevent conflicts of interest from being circumvented by the association of lawyers in a firm, ensuring that client confidentiality and loyalty are protected across the firm. Screening procedures function to balance these protections with the mobility of lawyers between firms.

Rule 1.11 Special Conflicts of Interest for Former and Current Government Officers and Employees

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule sets specific conflict of interest rules for lawyers who move between government and private practice. It restricts former government lawyers from representing clients in connection with matters they participated in personally and substantially as a government employee. It also imposes limitations on current government lawyers.

Functional Purpose: To prevent the misuse of public office or confidential government information and to avoid the appearance of impropriety when lawyers transition between government service and private practice. It upholds public trust in the legal system.

Rule 1.12 Former Judge, Arbitrator, Mediator or Other Third-Party Neutral

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule restricts lawyers who have served as judges, arbitrators, mediators, or other third-party neutrals from representing anyone in connection with a matter in which they participated personally and substantially, unless all parties give

informed consent, confirmed in writing.

Functional Purpose: To maintain public confidence in the impartiality of the judiciary and alternative dispute resolution processes by preventing neutrals from later switching sides or using confidential information gained during their neutral role.

Rule 1.13 Organization as Client

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule addresses the representation of an organization (like a corporation or government entity). It clarifies that the lawyer represents the organization itself, not its constituents (officers, directors, employees). It provides guidance on how a lawyer should act when constituents' interests conflict with the organization's interests or when a constituent's conduct may harm the organization.

Functional Purpose: To define the lawyer's duty of loyalty when representing an entity, ensuring the lawyer acts in the best interest of the organization as a whole, which can be complex when dealing with individuals within the organization.

Rule 1.14 Client with Diminished Capacity

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule guides lawyers representing clients with diminished capacity (e.g., minors, persons with mental impairment). It requires the lawyer to maintain a normal client-lawyer relationship as much as possible and, when reasonably necessary to protect the client's interests, allows the lawyer to take reasonably necessary protective action, potentially including consulting with individuals or entities capable of protecting the client or seeking appointment of a guardian.

Functional Purpose: To enable lawyers to effectively represent clients who may not be fully capable of making informed decisions themselves, balancing the duty to the client with the need to protect vulnerable individuals' interests.

Rule 1.15 Safekeeping Property

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule mandates that lawyers hold client or third-person property separate from the lawyer's own property. Client funds must be kept in a separate trust account (IOLTA account unless otherwise specified). Lawyers have duties to notify

clients/third persons upon receiving funds/property and to promptly deliver funds/property that the client or third person is entitled to receive. It also addresses handling disputed property.

Functional Purpose: To protect client and third-party funds and property entrusted to the lawyer, preventing commingling and ensuring proper accounting and distribution. It is critical for maintaining financial integrity and trust.

Rule 1.16 Declining or Terminating Representation

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule outlines when a lawyer must decline or withdraw from representation (mandatory withdrawal) and when a lawyer may withdraw (permissive withdrawal). Mandatory withdrawal is required if representation violates ethics rules or other law, the lawyer's physical or mental condition materially impairs the ability to represent the client, or the lawyer is discharged by the client. Permissive withdrawal is allowed under various conditions, provided it can be accomplished without material adverse effect on the client or if the client insists on criminal/fraudulent conduct, among other reasons. Upon termination, the lawyer must take steps to protect the client's interests.

Functional Purpose: To define the circumstances under which a lawyer-client relationship must or may end, balancing the client's right to counsel and potential harm from withdrawal against the lawyer's ethical obligations and professional judgment.

Rule 1.17 Sale of Law Practice or Firm

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule permits a lawyer or a law firm to sell or purchase a law practice or an area of law practice. It sets specific conditions for such a sale, including that the entire practice (or entire area) is sold to one or more lawyers or law firms, written notice is given to the client regarding the sale and the client's right to object or retain other counsel, and client fees are not increased because of the sale.

Functional Purpose: To allow lawyers to transition out of practice (e.g., due to retirement, disability) while ensuring that clients receive adequate notice and their interests are protected, facilitating the continuation of legal services to those clients.

Rule 1.18 Duties to Prospective Clients

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule addresses the duties owed to a person who consults with a lawyer about the possibility of forming a client-lawyer relationship but does not ultimately become a client (a "prospective client"). It requires the lawyer to protect confidential information learned during the consultation and prohibits representing a client with interests materially adverse to those of the prospective client in the same or a substantially related matter if the lawyer received information that could be significantly harmful. It also provides for screening mechanisms to potentially overcome this conflict.

Functional Purpose: To encourage individuals to seek legal advice by protecting confidential information disclosed during initial consultations, even if no formal attorney-client relationship is formed, while also providing rules to manage potential conflicts arising from such consultations.

Rule 2.1 Advisor

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: In representing a client, a lawyer shall exercise independent professional judgment and render candid advice. In rendering advice, a lawyer may refer not only to law but to other considerations such as moral, economic, social, and political factors, that may be relevant to the client's situation.

Functional Purpose: To define the lawyer's role beyond just applying the law, emphasizing the importance of providing comprehensive and honest counsel that considers all relevant aspects of the client's circumstances to help the client make well-informed decisions.

Rule 2.3 Evaluation for Use by Third Persons

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule covers situations where a lawyer provides an evaluation of a client's affairs for the use of someone other than the client (e.g., an opinion letter for a lender). It requires informed consent from the client unless the disclosure is impliedly authorized. It also sets conditions if the evaluation is likely to affect the client's interests materially and adversely.

Functional Purpose: To allow lawyers to provide objective assessments for external use (which can be crucial for transactions or disputes) while ensuring the client's interests and confidentiality are protected and the lawyer's role and the limitations of the evaluation are clear to the third party.

Rule 2.4 Lawyer Serving as Third-Party Neutral

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule applies when a lawyer serves as a third-party neutral (e.g., mediator, arbitrator, facilitator). It requires the lawyer to inform unrepresented parties that the lawyer is not representing them, explain the difference between the lawyer's role as a neutral and a lawyer representing a client, and explain the neutral's role.

Functional Purpose: To ensure fairness and prevent misunderstandings when a lawyer is acting in a non-representational capacity to help parties resolve a dispute, making clear that the neutral is not providing legal advocacy for any side.

Rule 3.1 Meritorious Claims and Contentions

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits a lawyer from bringing or defending a proceeding, or asserting or controverting an issue therein, unless there is a basis in law and fact for doing so that is not frivolous. A non-frivolous argument can include a good faith argument for an extension, modification, or reversal of existing law.

Functional Purpose: To prevent the abuse of the legal system for improper purposes, such as harassing opponents or wasting judicial resources on baseless claims. It functions to ensure that legal actions have a legitimate foundation.

Rule 3.2 Expediting Litigation

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule requires a lawyer to make reasonable efforts to expedite litigation consistent with the interests of the client.

Functional Purpose: To contribute to the efficient administration of justice, preventing unnecessary delays that can harm clients and burden the court system. It balances the client's interest in a favorable outcome with the broader public interest in timely resolution of disputes (reflecting the goal in FRCP 1).

Rule 3.3 Candor Toward the Tribunal

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule mandates honesty towards the court (tribunal). A lawyer shall not knowingly make a false statement of fact or law to a tribunal, fail to correct a previously made false statement, fail to disclose adverse controlling legal authority, or offer evidence the lawyer knows to be false. It requires remedial measures, including disclosure to the tribunal, if false evidence has been offered. These duties apply even if confidentiality is otherwise protected by ER 1.6.

Functional Purpose: To maintain the integrity of the adjudicative process by ensuring the tribunal receives truthful information and a fair presentation of legal authority, enabling it to render just decisions. It prioritizes the court's need for truth over client confidentiality in these specific circumstances.

Rule 3.4 Fairness to Opposing Party and Counsel

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule broadly prohibits unfair conduct towards opposing parties and counsel. This includes unlawfully obstructing access to evidence, falsifying evidence, counseling or assisting a witness to testify falsely, knowingly disobeying an obligation under the rules of a tribunal, making frivolous discovery requests or failing to make diligent efforts to comply with discovery requests, alluding to irrelevant matters at trial, and requesting a person other than a client to refrain from giving relevant information unless certain conditions are met.

Functional Purpose: To ensure the adversarial system operates fairly by preventing tactics that obstruct justice, prejudice the outcome, or harass participants, upholding the principle of **Fairness** in litigation.

Rule 3.5 Impartiality and Decorum of the Tribunal

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits a lawyer from seeking to influence a judge, juror, prospective juror, or other official by means prohibited by law, communicating ex parte with such a person during the proceeding unless authorized by law or court order (**Ex Parte**), or engaging in conduct intended to disrupt the tribunal.

Functional Purpose: To maintain the independence and integrity of the judiciary and

the jury system, ensuring that decisions are based on the merits presented in court rather than improper influence or disruption. It preserves the **Impartiality** and dignity of the court.

Rule 3.6 Trial Publicity

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule restricts a lawyer's extrajudicial statements (statements outside of court) that the lawyer knows or reasonably should know will be disseminated by means of public communication and will have a substantial likelihood of materially prejudicing an adjudicative proceeding. It lists specific statements that are likely to be prohibited and others that are generally permissible (e.g., public record information, warning of danger). It also provides a "safe harbor" for a lawyer to make a public statement necessary to protect a client from the substantial undue prejudicial effect of recent publicity not initiated by the lawyer or the client.

Functional Purpose: To protect the integrity of the adjudicative process and the right to a fair trial by preventing prejudicial publicity that could improperly influence judges or juries. It balances the right to free speech with the need for impartial justice.

Rule 3.7 Lawyer as Witness

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule generally prohibits a lawyer from acting as an advocate in a trial in which the lawyer is likely to be a necessary witness. It provides exceptions, such as when the testimony relates to an uncontested issue, relates to the nature and value of legal services in the case, or disqualification would cause substantial hardship to the client. If the lawyer is called as a witness, their partner or associate may still act as advocate unless conflicts of interest prevent it.

Functional Purpose: To prevent confusion for the fact-finder (judge or jury) when a lawyer is simultaneously arguing the case and providing testimony, and to avoid conflicts that arise when the lawyer's role as advocate conflicts with their role as a witness.

Rule 3.8 Special Responsibilities of a Prosecutor

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule imposes special ethical obligations on prosecutors, which go

beyond those of lawyers in civil practice. These include refraining from prosecuting a charge they know is not supported by probable cause, making reasonable efforts to assure the accused has been advised of the right to counsel, not seeking waivers of important pretrial rights from unrepresented defendants, making timely disclosure of evidence known to the prosecutor that tends to negate the guilt of the accused or mitigate the offense (Brady/Giglio material), and exercising reasonable care to prevent investigators and others assisting the prosecutor from making extrajudicial statements that the prosecutor could not make.

Functional Purpose: To reflect the prosecutor's unique role as a minister of justice (not just an advocate), ensuring fairness to the defendant, protecting constitutional rights, and maintaining the integrity of the criminal justice system.

Rule 3.9 Advocate in Nonadjudicative Proceedings

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule applies to lawyers representing clients in nonadjudicative proceedings, such as appearing before legislative bodies or administrative agencies in a rule-making or policy-making capacity. It requires the lawyer to disclose that they are appearing in a representative capacity, although it does not apply when a lawyer is merely testifying on their own behalf.

Functional Purpose: To ensure transparency when lawyers are acting as advocates in settings outside of formal court litigation, making clear whether they are speaking for a client or in a personal capacity.

Rule 3.10 Credible and Material Exculpatory Information about a Convicted Person

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule imposes a duty on prosecutors and other government lawyers when they learn of credible and material information that casts doubt upon the conviction of a criminal defendant. Depending on the nature of the information and the jurisdiction, it may require disclosure to the defendant or the court, and in some circumstances, investigation.

Functional Purpose: To uphold the principle of justice and prevent wrongful convictions by requiring government lawyers to act when they become aware that a convicted person may be innocent, extending ethical obligations beyond the direct

prosecution of a case.

Rule 4.1 Truthfulness in Statements to Others

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: In the course of representing a client, a lawyer shall not knowingly make a false statement of material fact or law to a third person or fail to disclose a material fact when disclosure is necessary to avoid assisting a criminal or fraudulent act by a client, unless disclosure is prohibited by ER 1.6 (Confidentiality).

Functional Purpose: To maintain honesty and integrity in a lawyer's dealings with parties outside of court, promoting trust and preventing lawyers from being used to facilitate client fraud or crime. It sets a baseline ethical standard for interactions with non-clients.

Rule 4.2 Communication with Person Represented by Counsel

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: In representing a client, a lawyer shall not communicate about the subject of the representation with a person the lawyer knows to be represented by another lawyer in the matter, unless the lawyer has the consent of the other lawyer or is authorized to do so by law or a court order.

Functional Purpose: To prevent lawyers from interfering with the client-lawyer relationship of opposing parties and to ensure that represented parties are not taken advantage of or misled in the absence of their counsel. It promotes fairness in the adversarial process.

Rule 4.3 Dealing with Unrepresented Person

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: In dealing on behalf of a client with a person who is not represented by counsel, a lawyer shall not state or imply that the lawyer is disinterested. When the lawyer knows or reasonably should know that the unrepresented person misunderstands the lawyer's role in the matter, the lawyer shall make reasonable efforts to correct the misunderstanding. The lawyer shall not give legal advice to an unrepresented person, other than the advice to secure counsel, if the lawyer knows or reasonably should know that the interests of such a person are or have a reasonable

possibility of being in conflict with the interests of the client.

Functional Purpose: To prevent lawyers from taking unfair advantage of unrepresented individuals who may not understand their rights or the lawyer's adversarial role. It functions to ensure that unrepresented parties are treated with a minimum level of fairness and clarity.

Rule 4.4 Respect for Rights of Others

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: In representing a client, a lawyer shall not use means that have no substantial purpose other than to embarrass, delay, or burden any other person, or use methods of obtaining evidence that violate the legal rights of such a person. If a lawyer receives a document or electronically stored information relating to the representation of the lawyer's client and knows or reasonably should know that the document or electronically stored information was inadvertently sent, the lawyer shall promptly notify the sender.

Functional Purpose: To prevent lawyers from engaging in abusive, harassing, or illegally obtained information tactics, promoting civility and adherence to the law in dealings with third parties and opponents. The duty regarding inadvertently sent information functions to mitigate potential prejudice and maintain fairness.

Rule 5.1 Responsibilities of Lawyers Who Have Ownership Interests or are Managers or Supervisors

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule places ethical responsibility on partners, managing lawyers, and supervisory lawyers in a law firm or organization. They must make reasonable efforts to ensure that all lawyers and non-lawyers in the firm or under their supervision conform to the Rules of Professional Conduct. They are also responsible for another lawyer's violation if they order or ratify the conduct, or if they have direct supervisory authority and know of the conduct at a time when its consequences can be avoided or mitigated but fail to take reasonable remedial action.

Functional Purpose: To ensure ethical compliance within law firms and organizations by holding those with authority accountable for establishing and maintaining ethical practices and for addressing ethical misconduct by those they supervise.

Rule 5.2 Responsibilities of a Subordinate Lawyer

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule clarifies the ethical obligations of a lawyer working under the direction of another lawyer. It states that a lawyer is bound by the Rules of Professional Conduct notwithstanding that the lawyer acted at the direction of another person. However, a subordinate lawyer does not violate the Rules if that lawyer acts in accordance with a supervisory lawyer's reasonable resolution of an arguable question of professional duty.

Functional Purpose: To ensure that individual lawyers remain ethically accountable for their actions, even when following instructions, while also providing a limited defense when they rely on a supervisor's reasonable judgment in ambiguous ethical situations, recognizing the realities of hierarchical practice.

Rule 5.3 Responsibilities Regarding Nonlawyers

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule parallels Rule 5.1 but applies to lawyers with managerial or supervisory authority over nonlawyers (paralegals, secretaries, investigators, etc.). Lawyers must make reasonable efforts to ensure that the nonlawyer's conduct is compatible with the professional obligations of the lawyer. A lawyer is responsible for the conduct of a nonlawyer if the lawyer orders or ratifies the conduct, or if the lawyer has supervisory authority and fails to take remedial action regarding known misconduct.

Functional Purpose: To ensure that the ethical duties owed by lawyers (particularly regarding confidentiality and conflicts) are not compromised by the actions of nonlawyer personnel working under their direction.

Rule 5.4 Professional Independence of a Lawyer

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule aims to preserve the lawyer's professional independence. It generally prohibits sharing legal fees with nonlawyers, forming partnerships with nonlawyers if any activities involve the practice of law, and allowing a nonlawyer who recommends, employs, or pays the lawyer to direct or regulate the lawyer's professional judgment. Arizona has specific provisions related to Alternative Business Structures (ABS) under separate rules which modify the application of ER 5.4 in that

context.

Functional Purpose: To ensure that the lawyer's primary duty of loyalty and independent professional judgment is owed to the client, free from control or interference by nonlawyers who may have conflicting financial or business interests.

Rule 5.5 Unauthorized Practice of Law; Multijurisdictional Practice of Law

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits lawyers from practicing law in a jurisdiction where they are not licensed, or assisting others in doing so (Unauthorized Practice of Law - UPL). It also provides limited circumstances under which a lawyer licensed in one jurisdiction may practice law on a temporary basis in another jurisdiction (Multijurisdictional Practice - MJP), such as associating with local counsel, appearing in court pro hac vice (as is common in the District of Arizona - see LRCiv 83.1(c)), participating in arbitration/mediation, or performing work reasonably related to the lawyer's home jurisdiction practice.

Functional Purpose: To protect the public from unqualified or unregulated legal practitioners and to regulate the practice of law across jurisdictional boundaries, ensuring legal services are provided by those subject to the ethical rules and disciplinary authority of the relevant jurisdiction.

Rule 5.6 Restrictions on Right to Practice

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits a lawyer from participating in offering or making an agreement that restricts the right of a lawyer to practice after termination of the relationship (with limited exceptions for retirement benefit agreements or included in the sale of a law practice under ER 1.17). It also prohibits agreements to settle a claim or controversy that restrict a lawyer's right to practice.

Functional Purpose: To ensure that clients have access to legal representation and the ability to choose counsel, preventing lawyers from being restricted from future practice in ways that would harm the public or limit competition.

Rule 5.7 Responsibilities Regarding Law-Related Services

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule addresses situations where a lawyer provides "law-related services" (services that might reasonably be performed in conjunction with and are related to the provision of legal services, but are not themselves prohibited as the unauthorized practice of law when performed by nonlawyers, e.g., title insurance, financial planning, accounting, trust services). If these services are provided by the lawyer or by an entity controlled by the lawyer under circumstances where the client might believe they are receiving the protection of the client-lawyer relationship, the lawyer must take reasonable measures to assure that the recipient understands that the services are not legal services and that the protections of the client-lawyer relationship do not exist.

Functional Purpose: To prevent client confusion and ensure that clients understand when they are receiving legal services subject to ethical protections versus related non-legal services, maintaining clarity about the scope of the lawyer's professional responsibilities.

Rule 5.8 Restricted Practice

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule, while sometimes reserved in ABA versions, in Arizona and some jurisdictions, addresses restrictions on practice resulting from disciplinary sanctions or other court orders. It outlines the requirements for lawyers who have had their practice restricted by order of the court.

Functional Purpose: To ensure that lawyers subject to disciplinary restrictions comply with the terms of those restrictions and that the public is protected from lawyers whose ability to practice has been limited by a court.

Rule 6.1 Voluntary Pro Bono Publico Service

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule encourages lawyers to render voluntary **Pro Bono** ("For the public good") legal service. It suggests an aspirational goal for the amount of time lawyers should dedicate to providing legal services to those who cannot afford them, or to organizations that serve their needs.

Functional Purpose: To promote access to justice for all, reflecting the legal profession's public service obligations and the ideal that legal assistance should not

be solely dependent on the ability to pay. It functions as a call to contribute to the broader societal goal of equitable access to the legal system.

Rule 6.2 Accepting Appointments

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule requires a lawyer to accept court appointments to represent clients who cannot afford counsel, except for good cause shown. Good cause includes representation likely to result in violation of ethics rules or other law, representation imposing an unreasonable financial burden, or the client/cause being so repugnant to the lawyer as to impair the client-lawyer relationship or the lawyer's ability to represent the client.

Functional Purpose: To ensure that indigent individuals have access to legal representation in matters where the court deems it necessary, distributing the burden of providing such representation fairly among members of the bar.

Rule 6.3 Membership in Legal Services Organization

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule addresses potential conflicts of interest for a lawyer who is a member of a legal services organization (that serves persons of limited means) but also represents private clients. A lawyer shall not knowingly participate in a decision or action of the organization if participating would be incompatible with the lawyer's obligations to a client under ER 1.7, or where the decision could have a material adverse effect on a client of the organization whose interests are adverse to a client of the lawyer.

Functional Purpose: To encourage lawyers to participate in legal services organizations while managing potential conflicts between the organization's goals or clients and the lawyer's private clients.

Rule 6.4 Law Reform Activities Affecting Client Interests

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule applies when a lawyer is involved in law reform activities (e.g., serving on a bar committee, working for an organization seeking legislative change) and the reform might affect the interests of a client. If the client's interests are materially benefited by the reform, the lawyer must disclose that fact, but the lawyer

does not need to identify the client. If the reform would materially harm the client's interests, the lawyer must make sure the organization knows the lawyer's private client has such interests and the lawyer must not participate in the reform activity if it would violate ER 1.7.

Functional Purpose: To allow lawyers to participate in activities aimed at improving the law while managing potential conflicts between their public service role and their obligations to private clients, ensuring transparency and loyalty.

Rule 6.5 Nonprofit and Court-Annexed Limited Legal Service Programs

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule provides modified conflict of interest rules for lawyers providing short-term, limited legal services to clients through a program sponsored by a nonprofit organization or court (e.g., a walk-in clinic). In such programs, the conflict rules (ERs 1.7, 1.9, 1.10) are relaxed unless the lawyer knows that the limited representation involves a conflict. This allows lawyers to provide assistance to many people quickly without undertaking a full conflict check that would be impractical in the context of the limited service.

Functional Purpose: To facilitate the provision of brief legal assistance to underserved populations through clinics and similar programs by simplifying conflict checks, thereby expanding access to justice.

Rule 7.1 Communications Concerning a Lawyer's Services

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits a lawyer from making false or misleading communications about the lawyer or the lawyer's services. A communication is false or misleading if it contains a material misrepresentation of fact or law, or omits a fact necessary to make the statement not materially misleading.

Functional Purpose: To protect the public from false or deceptive advertising and solicitation by lawyers, ensuring that information about legal services is truthful and allows potential clients to make informed decisions when seeking counsel.

Rule 7.3 Solicitation of Clients

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule restricts direct contact solicitation of prospective clients. Generally, a lawyer shall not seek fee-paying employment by live person-to-person contact when the motive is the lawyer's or law firm's pecuniary gain, unless the person contacted is a lawyer, or has a family, close personal, or prior professional relationship with the lawyer. It also prohibits all solicitation if the target has made known they do not want to be solicited or if the solicitation involves coercion, duress, or harassment. Written, recorded, or electronic communications are generally permitted, subject to Rule 7.1 and specific labeling requirements ("Advertising Material").

Functional Purpose: To protect the public from overreaching, undue influence, and harassment by lawyers seeking to represent them, particularly when individuals may be vulnerable due to recent events. It regulates how lawyers can initiate contact for the purpose of gaining clients.

Rule 8.1 Bar Admission and Disciplinary Matters

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits a lawyer or applicant for admission to the bar from knowingly making a false statement of material fact, or failing to disclose a material fact known to the person, in connection with a bar admission application or a disciplinary matter. It also requires a lawyer in connection with a disciplinary matter to respond to a lawful demand for information from an admissions or disciplinary authority.

Functional Purpose: To maintain the integrity of the legal profession by ensuring honesty in the processes of becoming a lawyer and in the system for disciplining lawyers, which are essential for self-regulation.

Rule 8.2 Judicial and Legal Officials

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule prohibits a lawyer from making a statement that the lawyer knows to be false or with reckless disregard as to its truth or falsity concerning the qualifications or integrity of a judge, adjudicatory officer, or public legal officer, or of a candidate for election or appointment to judicial or legal office.

Functional Purpose: To protect the integrity of the judiciary and legal system by

preventing lawyers from making false or recklessly made statements that could undermine public confidence in judges and legal officials.

Rule 8.3 Reporting Professional Misconduct

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule requires a lawyer who knows that another lawyer has committed a violation of the Rules of Professional Conduct that raises a substantial question as to that lawyer's honesty, trustworthiness, or fitness as a lawyer in other respects, to inform the appropriate professional authority. It also requires a lawyer who knows that a judge has committed a violation of applicable rules of judicial conduct that raises a substantial question as to the judge's fitness for office to inform the appropriate authority.

Functional Purpose: To promote the self-regulation of the legal profession and the judiciary by requiring lawyers to report serious misconduct, which is essential for protecting the public and maintaining the integrity of the justice system.

Rule 8.4 Misconduct

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule provides a broad definition of professional misconduct. It includes violating or attempting to violate the Rules of Professional Conduct, knowingly assisting or inducing another to do so, committing a criminal act that reflects adversely on the lawyer's honesty, trustworthiness or fitness as a lawyer, engaging in conduct involving dishonesty, fraud, deceit, or misrepresentation (**Mala Fide** conduct), engaging in conduct prejudicial to the administration of justice, stating or implying an ability to influence improperly a government agency or official or to achieve results by means that violate the Rules or other law, and engaging in conduct that the lawyer knows or reasonably should know is harassment or discrimination in relation to the practice of law.

Functional Purpose: To provide a comprehensive list of prohibited conduct that undermines the integrity of the lawyer's professional role and the administration of justice, serving as the primary basis for disciplinary action.

Rule 8.5 Jurisdiction

Source: Arizona Rules of Professional Conduct (Arizona Supreme Court Rule 42)

Summary: This rule defines the disciplinary authority of the jurisdiction (Arizona). It states that a lawyer admitted to practice in Arizona is subject to the disciplinary authority of Arizona, regardless of where the lawyer's conduct occurs. A lawyer not admitted in Arizona but who provides or offers to provide legal services in Arizona is also subject to Arizona's disciplinary authority. It also addresses choice of law when misconduct involves conduct in multiple jurisdictions.

Functional Purpose: To define the scope of Arizona's authority to discipline lawyers, ensuring that lawyers practicing within or affecting the state's legal system are accountable to its ethical standards.